

Court No. - 29

Case :- WRIT - C No. - 22766 of 2019

Petitioner :- Javed Ahmad Khan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Furquan Ahmad (Alvi)

Counsel for Respondent :- C.S.C., Kapil Dev Singh Rathore

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

In challenging the recovery citation dated 15.06.2019 for a sum of Rs.15,000,25/- as electricity dues the submission of learned counsel for the petitioner is that the bill of Rs.6,45,058/- was raised against him for the month of March, 2017 and the same was duly deposited by the petitioner on 15.11.2017 and 06.12.2017. Therefore, the demand so raised is illegal and incorrect.

Sri Rathore, learned counsel appearing for the respondent No.2 submits that the demand is justified and it is only on account of change of current transformer that some confusion had arisen.

Be as it may be let a counter affidavit be filed within two weeks. Two weeks thereafter are allowed to the petitioner for filing rejoinder affidavit.

List for admission/final disposal after a month.

Until further orders of this court, the operation and effect of the impugned recovery citation dated 15.06.2019 shall remain in abeyance provided the petitioner deposits a sum of Rs.5,00,000/- within two weeks which will be subject to the decision of the writ petition.

On deposit of the aforesaid amount the electricity of the petitioner shall be restored.

Order Date :- 22.7.2019

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Court No. - 40

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Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Furquan Ahmad (Alvi)

Counsel for Respondent :- C.S.C., Kapil Dev Singh Rathore

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

Heard Sri Furquan Ahmad (Alvi), learned counsel for the petitioner and Sri Devesh Vikram, learned counsel for the respondent no.2.

The present writ petition has been preferred for the following reliefs:-

"(A) Issue a writ order or direction in the nature of certiorari quashing the impugned citation dated 15.06.2019 of the petitioner.

(B) Issue a writ order or direction in the nature of mandamus commanding the respondents not to take any coercive action against the petitioner."

The matter pertains to the disputed electricity bills. The Electricity Code is a self-contained comprehensive legislation. In case, the petitioner moves an appropriate complaint before the respondent no. 2 i.e. Executive Engineer Vidyut Vitaran Khand-II, Anand Nagar, Maharajganj, the same shall be heard and decided by the respondent no.2 in accordance with law.

Learned counsel for the petitioner submits at the bar that in compliance of the interim order passed by the co-ordinate Bench of this Court, the petitioner has already deposited Rs. 5,00,000/- and the same may be adjusted towards final settlement.

As the petitioner has disputed the electricity dues, the remedy available to the petitioner is to file a complaint under Clause 6.5 of the Electricity Supply Code, 2005.

Accordingly, the petition is **disposed of** with liberty to the petitioner to challenge the electricity dues by filing objection under Clause 6.5 of the Electricity Supply Code, 2005 and in case any complaint is filed, the same shall be heard and decided in accordance with law.

Order Date :- 3.7.2023

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